

Court No. - 3

Case :- WRIT - C No. - 16400 of 2016

Petitioner :- Shashank Gupta

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Yogendra Kumar Srivastava, Lalmani Srivastava

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Krishna Murari, J.

Hon'ble Vinod Kumar Misra, J.

Heard learned counsel for the parties and perused the records.

The petitioner was a consumer of electricity with the sanctioned load of 49 KV for running a mini flour mill. It is alleged that the flour mill was not running and ultimately the petitioner applied for disconnection of the electricity of the said flour mill. It is further alleged that in spite of disconnection of the electricity, Executive Engineer (respondent no.4) has sent an incorrect bill. Petitioner moved an application for correction of the said bill but the respondent no.4 (Executive Engineer) instead of correction of the bill, a recovery certificate dated 10.2.2016 has been issued against the petitioner amounting to Rs.4,54,461/-. Against the said recovery certificate, the petitioner has filed the instant petition.

The Uttar Pradesh Electricity Supply Code 2005 made under the Electricity Act 2003, provides for redressal of any dispute regarding bills and arrears. Para 6.5 (b) of the Supply Code provides that if a consumer disputes the accuracy of any bill, he may either make the payment under protest of - (i) an amount equal to the sum claimed from him, or (ii) the electricity charges calculated on the basis of average of electricity bills of the preceding six months, whichever is less and file a complaint with the competent authority, before the due date for payment. The complaint shall be decided within 7 days and the consumer shall be informed.

The petitioner has option to pay electricity charges calculated on the basis of average of electricity bills of the preceding six months and file the complaint with the competent authority.

Learned counsel for respondents informs that respondent No.4 is the competent authority, to decide such dispute.

The writ petition is, accordingly, disposed of with directions that, in case, the petitioner disputes accuracy of the bill and makes a representation for correction of the bill, the same will be decided within seven days provided the petitioner deposits electricity charges calculated on the basis of average of electricity bills of the preceding six months. Until disposal of petitioner's application, recovery in pursuance of the demand notice shall remain stayed. If the petitioner does not make the representation within 15 days from today, this order will not benefit the petitioner.

Order Date :- 12.4.2016

m.a.